

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 05/27/2026

Case #	Case Name	Tentative
01415299	Campbell – Trust	TENTATIVE RULING Case: Campbell – Trust 01415299 Calendar No.: 1 Date: 05/27/26 MOTION TO STRIKE (ROA 73) Petitioner Daniel Campbell ("Petitioner") moves to strike Objections filed on 4/21/25 (ROA 21) by Respondent Christine Campbell ("Respondent"). The motion is DENIED in part and GRANTED in part. This motion is made pursuant to Code of Civil Procedure section 436, which sets forth grounds for the court to strike a pleading as follows: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strikeout any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Emphasis added.) Petitioner moves to strike the Objections in their entirety on the ground that the Objections fail to admit or deny specific allegations contained in the Petition as required by Code of Civil Procedure section 431.30.

		Code of Civil Procedure section 431.30 pertains to complaints filed in a civil action. The probate court applies the Code of Civil Procedure, except to the extent that the Probate Code provides otherwise. (Prob. Code § 1000.) The Probate Code is not silent as to how a person may respond to a petition. It provides that an interested person may make a response or objection, in writing or orally, before or at the hearing. (Prob. Code section 1043(a) and (b).) The court is not persuaded that the absence of a specific format requirement for a writing in Probate Code section 1043(a) requires the imposition of the format requirements for an answer set forth in Civil Procedure section 431.30. Code of Civil Procedure section 431.30 narrowly governs an answer to a complaint, while Probate Code section 1043 broadly governs any kind of response or objection to a petition, including a demurrer. (See <i>Goebner v. Superior Court</i> (2025) 110 Cal.App.5th 1105, 1112.) Thus, the motion to strike the Objections in their entirety for failing to comply with Code of Civil Procedure section 431.30 is denied. Petitioner further moves to strike the sentence on page 10, lines 3-5 of the Objections which states as follows: "Further, because Daniel's Petition contesting the Trust and Amendment is without any probable cause, she has violated the no-contest clause and therefore has forfeited any gift or interest that would have gone to her." While the statement may or may not constitute a request for affirmative relief, the statement is irrelevant for purposes of responding to the Petition. Thus, the motion to strike such portion of the Objection is granted. Moving party is ordered to give notice of this ruling.
01355718	Smith – Trust	TENTATIVE RULING Case: Smith – Trust 01355718 Calendar No.: 3 Date: 05/27/26 MOTION TO DISQUALIFY ATTORNEY (ROA 209) Petitioner Brian Alexander Smith, in propria persona, moves to disqualify Bezaire & Leathers LLP, including attorneys Evelyn Leathers and Sherlock Lau, from representing Lou Ann Kelly and Michael Kelly. The motion is made pursuant to

		California Rules of Professional Conduct (CRPC), rule 1.9, based on an alleged conflict of interest. Petitioner has not established that he has standing to bring this motion. In 2021, the Court of Appeal for the First District reviewed the law of standing for a disqualification motion in <i>Moreci v. Scaffold Solutions, Inc.</i> (2021) 70 Cal.App.5th 425 (<i>Moreci</i>). <i>In Moreci</i>, Employee was injured on the job and received worker’s compensation benefits from Insurance Carrier. (<i>Moreci</i>, supra, at 429.) Attorney represented Employee in a lawsuit against Subcontractors for the injuries sustained on the job, and the case settled. (<i>Id.</i>) Insurance Carrier intervened and sought reimbursement from Subcontractors for benefits paid to Employee. (<i>Id.</i>) Attorney then became associate co-counsel for Subcontractors and filed an answer to the Complaint for Intervention on behalf of Subcontractors. (<i>Id.</i>) Insurance Carrier moved to disqualify Attorney based on the conflict of interest between Employee and Subcontractors. (<i>Id.</i>) The motion was denied for lack of standing. (<i>Id.</i>) In affirming the lower court’s denial of the motion to disqualify, the court in <i>Moreci</i> began its analysis of standing law as follows: “A ‘standing’ requirement is implicit in disqualification motions.” (<i>Great Lakes Construction, Inc. v. Burman</i> (2010) 186 Cal.App.4th 1347, 1356, 114 Cal.Rptr.3d 301 (<i>Great Lakes</i>).) A party moving to disqualify counsel must have a legally cognizable interest that would be harmed by the attorney's conflict of interest. (<i>Id.</i> at p. 1357, 114 Cal.Rptr.3d 301.) Courts have found an attorney-client relationship between the complaining party and the attorney sought to be disqualified is a prerequisite to seeking disqualification. (<i>Id.</i> at p. 1356, 114 Cal.Rptr.3d 301; <i>Strasbourger Pearson Tulcin Wolff Inc. v. Wiz Technology, Inc.</i> (1999) 69 Cal.App.4th 1399, 1404, 82 Cal.Rptr.2d 326 [“An attorney-client relationship must have existed before disqualification is proper”].) “Other courts, however, have slightly broadened the scope of that general rule,” holding that a nonclient may bring a disqualification motion based on an attorney's breach of a duty of confidentiality owed to the nonclient. (<i>Dino v. Pelayo</i> (2006)
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145 Cal.App.4th 347, 352 [51 Cal. Rptr. 3d 620], citing *DCH Health Services Corp. v. Waite* (2002) 95 Cal.App.4th 829, 832 [115 Cal. Rptr. 2d 847] (*DCH Health Services*) ["Standing arises from a breach of the duty of confidentiality owed to the complaining party, regardless of whether a lawyer-client relationship existed"].)

(*Moreci*, at 432-433.)

The court in *Moreci* also recognized that some courts have endorsed what has been described as a "minority view" that recognizes nonclient standing where a "manifest and glaring" ethical breach "so infects the litigation in which disqualification is sought that it impacts the moving party's interest in a just and lawful determination of [its] claims." (*Moreci*, at p. 433, internal citations omitted.) But even under the minority view, "[a] nonclient must establish a 'personal stake' in the motion to disqualify opposing counsel that is sufficient to satisfy the standing requirements of article III of the United States Constitution." The nonclient must "meet stringent standing requirements, that is, harm arising from a legally cognizable interest which is concrete and particularized, not hypothetical." (*Moreci*, at p. 434, internal citations omitted.)

The trial court in *Moreci* had found that Insurance Carrier did not have standing even under the minority view because it failed to show "an invasion of a legally protected interest which is (a) concrete and particularized, and (b) actual or imminent, not conjectural or hypothetical." (*Id.* at 432.) The trial court found that Insurance Carrier "alleged merely a generalized interest in 'the court's obligation to ensure the fair administration of justice', an interest insufficient 'to give a non-client standing.'" (*Id.*) The appellate court agreed. It found "the thrust of [Insurance Carrier's] motion rests on a purported effort to safeguard the integrity of the judicial system and the 'scrupulous administration of justice.' 'None of these lofty values, however, implicates any personal right of [Insurance Carrier] which is burdened by the alleged conflict of interest.' [Citation.]" (*Id.* at 444.)

Petitioner claims that Bezaire & Leathers previously represented the decedents R.D. Smith and Betty Kelly Smith in preparing the estate plan and now represents only Betty's children. There is no evidence that Ms. Leathers, Mr. Lau, and or any other person at the present law firm of Bezaire & Leathers LLP ever represented the decedents or acquired any confidential information from them. In fact, the evidence shows that they were not licensed to practice law at the time the estate plan was created. The estate plan was created by attorney Maria Bezaire who prepared the estate plan in 1999

		and sold the firm many years later. Further, Petitioner's moving and reply papers fail to articulate any personal stake that Petitioner has in the motion to disqualify or any legally cognizable interest of Petitioner's that would be harmed by Bezaire & Leathers LLP's continued representation of Lou Ann Kelly and Michael Kelly. Lacking a personal stake in the motion to disqualify, Petitioner lacks standing even under the minority view recognized by <i>Moreci</i>. Even if he had standing, Petitioner has not established the existence of any conflict of interest warranting disqualification. Finally, the court notes that Lou Ann Kelly and Michael Kelly have yet to make an appearance in this case. Thus, Bezaire & Leathers is not, as of now, "attorney of record" for them. "A trial court's authority to disqualify an attorney derives from the power inherent in every court '[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.'" (<i>People ex rel. Department of Corporations v. Speedee Oil Change Systems, Inc.</i> (1999) 20 Cal.4th 1135, 1145, emphasis added; internal citations omitted.) The court cannot control an attorney's representation of clients outside of litigation. For the foregoing reasons, the motion to disqualify is DENIED.
		TENTATIVE RULING Case: Calendar No.: Date: _____
		[Motion Type]
01496276	Schasker – Trust	TENTATIVE RULING Case: Schasker – Trust 01496276

Calendar No.: 5

Date: 05/27/2026

DEMURRER (ROA 21)

Respondent Dawn Passaro ("Respondent") demurrers to the Petition for Instructions (ROA 2) filed by Petitioner Kurt Schasker ("Petitioner") on 7/11/25 on the ground that it is barred by the 120-day statute of limitations to contest a trust pursuant to Probate Code section 16061.8.

Respondent specifically demurrers to the Petition filed on 7/11/25. An Amended Petition was 8/14/25 (ROA 1). The filing and service of an amended petition would render the demurrer moot. (*JKC3H8 v. Colton* (2013) 221 Cal.4th 468, 477.) It is unclear from the court's records, however, whether the Amended Petition was served on Respondent. Petitioner filed a Notice of Hearing on 9/3/25 (ROA 11), but it does not specify whether the original or amended petition was served with the Notice of Hearing.

Assuming arguendo that the demurrer is not moot, it must still be overruled.

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

Respondent has requested that the court take judicial notice of the Trust, three amendments to the Trust, and the Notification by Trustee. However, none of these documents are court records, nor are they otherwise matters of which the court can take judicial notice as set forth in Evidence Code section 451-452. Thus, Petitioner's request for judicial notice must be **denied**.

The initial Petition (ROA 2) alleges that the trustee never gave notice. The Amended Petition (ROA 10) alleges that the trustee gave notice in June 2023. In ruling on a demurrer, all material facts properly pleaded must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.)

Since there is nothing within the four corners of the petition that demonstrates it is time-barred by the 120-day statute of limitations, the demurrer must be **overruled**.

Counsel for Respondent is ordered to serve notice of ruling.

01317719	Hinnenkamp – Probate	TENTATIVE RULING Case: Hinnenkamp – Probate 01317719 Calendar No.: 6 Date: 05/27/2026 MOTION TO REQUEST HEARING ON CREDITOR’S CLAIM (ROA 186) June Estrada, in propria persona, filed a motion captioned as, “PLEADING TITLE: MOTION TO REQUEST A HEARING FOR CREDITOR’S CLAIM FOR JUNE ESTRADA EXPEDITE TO DEBORAH SUDERNO.” (ROA 186.) The motion is DENIED as procedurally defective. Ms. Estrada submitted a creditor’s claim on 4/18/23. (ROA 5.) Deborah Suderno was appointed Administrator on 6/20/24, and Letters issued on 7/24/24. (ROAs 108 and 120.) Ms. Estrada’s claim was rejected by the Administrator on 6/3/25. (ROA 182.) In her moving papers, Ms. Estrada acknowledges that she received the Notice of Rejection of her claim. (ROA 186, Mot., 4:12-13.) Ms. Estrada’s remedy was to commence an action (i.e., a civil lawsuit) on the claim within 90 days of rejection. (Prob. Code § 9353) Filing a motion in the probate action to contest a rejection is not an available procedural remedy. Ms. Suderno is ordered to give notice of this ruling.
01389717	Machorro – Trust	TENTATIVE RULING Case: Machorro – Trust 01389717 Calendar No.: 9 Date: 05/27/2026 MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 231) Petitioner Vanessa Stone (“Petitioner”) moves to compel initial responses to requests for production of documents

		from Respondent Lorelei Ann Griggs ("Respondent"). Petitioner further moves for monetary sanctions in the amount of \$1,060.00. In opposition (ROAs 476, 484, and 497), Respondent states that she has since complied with discovery and produced documents. However, she does not state a satisfactory reason for failing to timely respond to discovery or request an extension. Respondent also argues that the discovery sought by the subject document demand is duplicative. There is no evidence of duplication presented. Moreover, "[a] party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method." (<i>Irvington-Moore, Inc. v. Superior Court</i> (1993) 14 Cal.App.4th 733, 738-739 (emphasis added).) Further, no motion for protective order was filed. Petitioner maintains that discovery sanctions should be imposed for necessitating the motion. (ROA 487.) The court is not persuaded that Respondent has opposed this motion with substantial justification. Pursuant to Code of Civil Procedure section 2031.300(c), the court awards Petitioner attorney's fees in the amount of \$1,060.00 payable by Respondent Lorelei Ann Griggs. Counsel for moving party is ordered to give notice of this ruling and may elect to prepare, file and serve a proposed Order After Hearing.
01499532	Rodman - Trust	TENTATIVE RULING Case: Rodman - Trust 01499532 Calendar No.: 7 Date: 05/27/2026 MOTIONS TO COMPEL MEDIATION AND ARBITRATION (ROA 13) Before the court is a motion by Kara Kruse Lee ("Kara") to compel mediation and arbitration for the pending petitions. The motion is opposed by Kevin Craig Kruse ("Kevin"). Since the parties involved in this case share a surname, the court uses first names for clarity and no disrespect is intended. (<i>Morgan v. Superior Court</i> (2018) 23 Cal. App. 5th 1026. fn.1.)

There are two petitions currently pending:

- Kevin's Petition to compel an accounting from Kara (ROA 2); and
- Kara's Petition for recovery of property and financial elder abuse (ROA 10).

The subject trust contains the following language regarding mediation and arbitration: "I request that any questions or disputes that arise during the administration of this trust be resolved by mediation and, if necessary, arbitration in accordance with the Uniform Arbitration Act." (ROA 11, Duff Decl., Ex. A, § 11:05.)

The parties dispute whether the foregoing arbitration clause is precatory or mandatory. While the phrase "I request" is clearly precatory in nature, Kara argues that the court must look to the settlor's intent in determining whether the arbitration clause is mandatory. Kara argues that the settlor's intent is reflected in the title of Section 11.05 "No Court Proceedings." However, Section 13.07(c) of the Trust states that the "headings of Articles, Sections, and Subsections used within this trust . . . have no significance in the interpretation or construction of this trust."

In reviewing and considering the entirety of Section 11.05, as well as other language in the Trust, the court is unable to determine that the settlor intended to mandate arbitration rather than express a preference for it. At most, the court would interpret the language to constitute an instruction to *the trustee* to avoid litigation when possible.

Even if the settlor intended to mandate mediation and arbitration, the court is not persuaded that such mandate could be enforced against Kevin at this juncture. In *McArthur v. McArthur* (2014) 224 Cal.App.4th 651, the Court of Appeal for the First District, Division 5, found that a trust beneficiary was not bound by an arbitration clause in a trust instrument where the beneficiary was not claiming any benefits or enforcing any rights under the trust. (*Id.* at 662-663.) Here, Kevin is invoking a statutory right to compel an accounting under Probate Code section 17200(b)(7), which is a right granted by the Legislature, not a contractual right derived from the trust instrument.

For the foregoing reasons, the motion to compel arbitration is **DENIED**.

Counsel for moving party is ordered to give notice of ruling.

		TENTATIVE RULING Case: Calendar No.: Date:
		TENTATIVE RULING Case: Calendar No.: Date: